

Court No. - 32

Case :- WRIT - C No. - 49800 of 2013

Petitioner :- Brijesh Kumar Singh

Respondent :- The State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- Kameshwar Chaubey

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Sunil Ambwani,J.

Hon'ble Surya Prakash Kesarwani,J.

We have heard learned counsel for the petitioner.

Learned standing counsel appears for the State respondents. Sri Mahboob Ahmad appears for the Purvanchal Electricity Distribution Corporation - respondent Nos. 2 to 4.

The petitioner is aggrieved by providing electricity connection from 10 KVA transformer installed at plot No. 934 of the petitioner to respondent No.5

It is submitted that the transformer is already been overloaded and hence any connection given from his transformer will amount to a threat to the supply of electricity to the petitioner and will also cause threat to the safety of the transformer. He states that respondent No.5 is in enmity with petitioner, and is causing problem in the electric supply to the agriculture field of the petitioner. The petitioner has made a representation on 24.08.2013 to the District Magistrate, Ballia, which is pending.

We are of the view that in such case, the remedies under the U.P. Electricity Supply Code 2005, have to be availed by the petitioner. The question as to whether petitioner's transformer is overloaded, and that no other connection can be given without his consent, and neither any other connection will reduce the effective power supply and put the transformer under any threat can be raised under para 4.29 of the U.P. Electricity Supply Code 2005, to the concerned Executive Engineer.

In case the petitioner approaches the respondent No.3 with his complaint, the same may be considered by him very expeditiously.

The writ petition is **dismissed** on the ground of alternative remedy.

Order Date :- 19.9.2013

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